Chapter 2.—ELECTIVE FRANCHISE

§§ 31, 32. Transferred.

CODIFICATION

Sections 31 and 32 transferred to sections 1971 and 1972, respectively, of Title 42, The Public Health and Welfare.

Chapter 3.—CIVIL RIGHTS

§§ 41—43. Transferred.

CODIFICATION

Sections 41—43 transferred to sections 1981—1988, respectively, of Title 42, The Public Health and Welfare.

§§ 44, 45. Repealed. June 25, 1948, ch. 645, § 21, 62 Stat. 862, eff. Sept. 1, 1948.

Section 44, act Mar. 1, 1875, ch. 114, § 4, 18 Stat. 336, related to exclusion of jurors on account of race or color, and is now covered by section 243 of Title 13, Crimes and Criminal Procedure.

Section 45, acts Mar. 1, 1875, ch. 114, § 3, 18 Stat. 336; May 28, 1896, ch. 252, § 19, 29 Stat. 184, related to prosecutions for banning jurors because of race or color, and is now covered by section 243 of Title 18, Crimes and Criminal Procedure.

§§ 46—51. Transferred.

CODIFICATION

Sections 46—51 transferred to sections 1984—1990, respectively, of Title 42, The Public Health and Welfare.

§ 52. Repealed. June 25, 1948, ch. 646, § 39, 62 Stat. 992, eff. Sept. 1, 1948.

Section R. S. § 1986; acts May 28, 1896, ch. 252, § 6, 29 Stat. 179; Feb. 26, 1919, ch. 49, § 1, 40 Stat. 1182; Feb. 11, 1921, ch. 46, 41 Stat. 1099, related to fees of district attorneys, marshals, and clerks of court.

§§ 53—56. Transferred.

CODIFICATION

Sections 53—56 transferred to sections 1991—1994, respectively, of Title 42, The Public Health and Welfare.

Chapter 4.—FREEDMEN

§§ 61—65. Omitted.

CODIFICATION

Section 61, R. S. 2032, related to continuation of laws then in force, and is omitted as obsolete.

Section 62, R. S. 2033, related to enforcement of laws by former Secretary of War, and is omitted as obsolete.

Section 63, acts Mar. 3, 1879, ch. 182, § 2, 20 Stat. 402; Feb. 1, 1888, ch. 4, § 1, 25 Stat. 9; July 1, 1898, ch. 546, 30 Stat. 640, related to claims for pay or bounty, and is omitted as obsolete.

Section 64, act July 1, 1902, ch. 1351, 32 Stat. 556, related to retained bounty fund, and is omitted as obsolete.

Section 65, R. S. § 2037, related to wives and children of colored soldiers, and is omitted as executed.

Chapter 5.—ALIEN OWNERSHIP OF LAND

§§ 71—78. Transferred.

CODIFICATION

Sections 71—78 transferred to sections 1501—1508, respectively, of Title 48, Territories and Insular Possessions.

§§ 79—82. Omitted.

CODIFICATION

Sections related to alien ownership of real estate in the District of Columbia. Sections 79—81 were from act Mar. 3, 1887, ch. 340, §§ 1, 2, 4, respectively, 24 Stat. 476, 477, as specifically excepted from amendment by act Mar. 2, 1897, ch. 363, 29 Stat. 618 (for said act Mar. 3, 1887, as amended by the 1897 act, see sections 1501—1507 of Title 48, Territories and Insular Possessions); and section 82 was from act Mar. 9, 1888, ch. 30, 25 Stat. 45.

Said sections 1, 2 and 4 of the 1887 act, and the act of 1888 were incorporated in sections 396—398 of the District of Columbia Code enacted by act Mar. 3, 1901, ch. 854, 31 Stat. 1252, and amended by act June 30, 1902, ch. 1329, 32 Stat. 530. Said sections 396—398 of the 1901 D. C. Code, as so amended, were omitted from the 1929 D. C. Code as having been superseded by section 1503 of Title 48, Territories and Insular Possessions, but they were set out as sections 45–1502, 45–1503 and 45–1504 of the 1940 D. C. Code, and said act of 1888 was set out as section 45–1505 of such Code.

§§ 83—86. Transferred.

CODIFICATION

Sections 83—86 transferred to sections 1509—1512, respectively, of Title 48, Territories and Insular Possessions.

Chapter 6.—IMMIGRATION

SUBCHAPTER I.—IMMIGRATION AND NATURALIZATION AGENCIES, OFFICERS, AND STATIONS

Sec.
100, 101. Transferred.
102. Repealed.
103. Commissioner of Immigration and Naturalization; administration of alien contract labor laws.
103a. Reimbursement of expenses incurred by other agencies of Federal, State, and local governments.
104—106c. Repealed.
107. Commissioners of immigration; appointments.
108, 109. Repealed.
109a—109d. Transferred.
110. Repealed.
111, 112. Transferred.
113. Repealed.
114. Lease of immigrant station at Charleston.
115—117. Repealed.
118. Motor vehicles for enforcement of immigration and Chinese exclusion laws.

SUBCHAPTER II.—REGULATION AND RESTRICTION OF IMMIGRATION IN GENERAL

131. Control of immigration.
132—173. Repealed.
174. Finality of decisions of immigration officers.
175—181. Repealed.

SUBCHAPTER III.—QUOTA AND NONQUOTA IMMIGRANTS

201—204. Repealed.
204a, 204b. Native of Virgin Islands residing in foreign countries.
204c—227. Repealed.
228. Certain aliens admitted in excess of quotas permitted to remain.
229—231. Repealed.
232—237. Omitted.
238. Prevention of transportation in foreign commerce of alien women and girls under international agreement; Commissioner designated as authority to receive and preserve information.
239. Admission of alien spouses and minor children of members of armed services.

SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

241—246. Repealed.

SUBCHAPTER I.—IMMIGRATION AND NATURALIZATION AGENCIES, OFFICERS, AND STATIONS

§§ 100, 101. Transferred.

CODIFICATION

Section 100 transferred to section 342 of Title 5, Executive Departments and Government Officers and Employees.

Section 101 transferred to section 342b of Title 5, Executive Departments and Government Officers and Employees.

§ 102. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (13), 66 Stat. 279.

Section, acts Feb. 5, 1917, ch. 29, § 23, 39 Stat. 392; May 14, 1937, ch. 181, 50 Stat. 164; Oct. 29, 1945, ch. 438, 59 Stat. 551; Oct. 15, 1949, ch. 695, § 5 (a), 63 Stat. 880, related to the administration of immigration laws and is now covered by subchapter II of chapter 12 of this title.

§ 103. Commissioner of Immigration and Naturalization; administration of alien contract labor laws.

CODIFICATION

Section transferred to section 342h of Title 5, Executive Departments and Government Officers and Employees.

§ 103a. Reimbursement of expenses incurred by other agencies of Federal, State, and local governments.

CODIFICATION

Section, act July 9, 1947, ch. 211, title II, § 201, 61 Stat. 292, was from the Department of Justice Appropriation Act, 1948, and was not repeated in the Department of Justice Appropriation Act, 1949, act June 3, 1948, ch. 400, title II, § 201, 62 Stat. 316.

SIMILAR PROVISIONS

Similar provisions were carried in prior appropriation acts as follows:

1946—July 5, 1946, ch. 541, title II, § 201, 60 Stat. 462.
1945—May 21, 1945, ch. 129, title II, § 201, 59 Stat. 185.
1944—June 28, 1944, ch. 294, title II, § 201, 58 Stat. 412.
1943—July 1, 1943, ch. 182, title II, § 201, 57 Stat. 288.
1942—July 2, 1942, ch. 472, title II, § 201, 56 Stat. 483.
1941—June 28, 1941, ch. 258, title III, 55 Stat. 292.

§ 104. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Section, acts June 6, 1900, ch. 791, § 1, 31 Stat. 611; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, provided that the Commissioner of Immigration and Naturalization should have charge, under supervision of the Attorney General, of the administration of the Chinese exclusion laws.

§ 105. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (13), 66 Stat. 279.

Section, act Feb. 5, 1917, ch. 29, § 30, 39 Stat. 895, related to the division of information and is now covered by subchapter II of chapter 12 of this title.

§§ 106—106c. Repealed. Oct. 14, 1940, ch. 876, title I, subch. V, § 504, 54 Stat. 1172.

Sections, acts June 29, 1906, ch. 3592, § 1, 34 Stat. 596; Mar. 2, 1929, ch. 536, §§ 1—3, 45 Stat. 1512. 1513; Apr. 19, 1934, ch. 154, § 6, 48 Stat. 598; June 8, 1934, ch. 429, 48 Stat. 926; Aug. 7, 1939, ch. 517, 53 Stat. 1243, related to registry of aliens. Similar provisions were contained in former sections 728, 729, 742 (b), and 746 (*l*) of this title. Present provisions are contained in subchapter II of chapter 12 of this title.

§ 107. Commissiouers of immigration; appointment.

CODIFICATION

Commissioners of immigration at the several ports, for whose appointment this section, acts Aug. 18, 1894, ch. 301, § 1, 28 Stat. 391; Aug. 1, 1914, ch. 223, § 1, 38 Stat. 666; June 5, 1920, ch. 235, § 1, 41 Stat. 936, provided, were abolished and functions transferred to "such district directors of immigration and naturalization" as the Commissioner shall designate by 1940 Reorg. Plan No. III, § 6, eff. June 30, 1940, 5 F. R. 2108, 54 Stat. 1233, set out as note under section 133t of Title 5, Executive Departments and Government Officers and Employees. Sections 8 and 9 of such plan provide for transfer of records, property, personnel and funds.

§§ 108, 109. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (13), 66 Stat. 279.

Section 108, act Feb. 5, 1917, ch. 29, § 23, 39 Stat. 392, related to duties of immigration officers and is now covered by subchapter II of chapter 12 of this title.

Section 109, acts Feb. 5, 1917, ch. 29, § 24, 39 Stat. 893; June 10, 1921, ch. 18, § 304, 42 Stat. 24; May 29, 1928, ch. 864, 45 Stat. 954; Feb. 21, 1931, ch. 270, 46 Stat. 1205; May 2, 1932, ch. 156, 47 Stat. 145; June 20, 1942, ch. 426, 56 Stat. 373, related to officers and employees and is now covered by subchapter II of chapter 12 of this title.

§§ 109a—109d. Transferred.

CODIFICATION

Sections 109a—109d transferred to sections 342c—342f, respectively, of Title 5, Executive Departments and Government Officers and Employees.

§ 110. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (25), 66 Stat. 279.

Section, acts Feb. 27, 1925, ch. 364, title IV, 43 Stat. 1049; Aug. 7, 1946, ch. 768, 60 Stat. 856; Mar. 20, 1952, ch. 108, § 2, 66 Stat. 26, related to arrest of aliens without warrant, and is now covered by subchapter II of chapter 12 of this title.

§§ 111, 112. Transferred.

CODIFICATION

Sections 111, 112 transferred to sections 342g and 342i, respectively, of Title 5, Executive Departments and Government Officers and Employees.

§ 113. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (13), 66 Stat. 279.

Section, act Feb. 5, 1917, ch. 29, § 11a, 39 Stat. 882, related to detail of inspectors on vessels, and is now covered by subchapter II of chapter 12 of this title.

§ 114. Lease of immigrant station at Charleston.

CODIFICATION

Section transferred to section 342k of Title 5, Executive Departments and Government Officers and Employees.

§§ 115, 116. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (13), 66 Stat. 279.

Section 115, act Feb. 5, 1917, ch. 29, § 26, 39 Stat. 894, related to disposal of privileges at immigrant stations, and is now covered by subchapter II of chapter 12 of this title.

Section 116, act Feb. 5, 1917, ch. 29, § 27, 39 Stat. 894, related to local jurisdiction over immigrant officers, and is now covered by subchapter II of chapter 12 of this title.

§ 117. Repealed. July 1, 1944, ch. 373, title VII, § 711, 58 Stat. 714, as renumbered Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049.

Section, acts Jan. 3, 1923, ch. 22, 42 Stat. 1101; Apr. 4, 1924, ch. 84, title I, 43 Stat. 75; Jan. 22, 1925, ch. 87, title I, 43 Stat. 775; Mar. 2, 1926, ch. 43, § 1, 44 Stat. 147; Jan. 26, 1927, ch. 58, § 1, 44 Stat. 1038; Mar. 5, 1928, ch. 126, title I, § 1, 45 Stat. 174; Dec. 20, 1928, ch. 39, title I, § 1, 45 Stat. 1039; May 15, 1930, ch. 289, title I, § 1, 46 Stat. 347; Feb. 23, 1931, ch. 277, title I, § 1, 46 Stat. 1223; July 5, 1932, ch. 430, title I, § 1, 47 Stat. 591; Mar. 3, 1933, ch. 212, title I, § 1, 47 Stat. 1500; Mar. 15, 1934, ch. 70, title I, § 1, 48 Stat. 435; May 14, 1935, ch. 110, 49 Stat. 229; June 23, 1936, ch. 725, § 1, 49 Stat. 1839; May 14, 1937, ch. 180, title I, 50 Stat. 149; Mar. 28, 1938, ch. 55, § 1, 52 Stat. 133; May 6, 1939, ch. 115, title I, § 1, 53 Stat. 668; June 26, 1940, ch.

428, title II, 54 Stat. 585; July 1, 1941, ch. 269, title II, 55 Stat. 481; July 2, 1942, ch. 475, title II, § 1, 56 Stat. 581; July 12, 1943, ch. 221, title II, § 1, 57 Stat. 193, related to use of the hospital at Ellis Island Immigration Station for the care of Public Health Service patients.

USE OF HOSPITAL AT ELLIS ISLAND BY PUBLIC HEALTH SERVICE

Provisions of prior years relating to the use of the hospital at Ellis Island by the Public Health Service were repealed by act July 1, 1944, ch. 373, title VII, § 711, 58 Stat. 714, renumbered Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049. However, the Labor-Security Appropriation Act, 1945, June 28, 1944, ch. 302, title II, § 201, 58 Stat. 558, which was not included in the repeals by said act of July 1, 1944, provided: "The Immigration and Naturalization Service shall permit the Public Health Service to use the hospitals at Ellis Island Immigration Station for the care of Public Health Service patients free of expense for physical upkeep, but with a charge of actual cost of fuel, light, water, telephone, and similar supplies and services, to be covered into the proper Immigration Service appropriations; and money collected by the Immigration Service on account of hospital expenses of persons detained in hospitals of the Public Health Service under the immigration laws and regulations shall be covered into the Treasury as miscellaneous receipts."

§ 118. Motor vehicles for enforcement of immigration and Chinese exclusion laws.

CODIFICATION

Section, acts June 12, 1917, ch. 27, § 1, 40 Stat. 170; Mar. 28, 1922, ch. 117, title II, 42 Stat. 487; Jan. 5, 1923, ch. 24, title II, 42 Stat. 1127; May 28, 1924, ch. 204, title IV, 43 Stat. 240; Feb. 27, 1925, ch. 364, title IV, 43 Stat. 1049; Apr. 29, 1926, ch. 195, title IV, 44 Stat. 371; Feb. 24, 1927, ch. 189, title IV, 44 Stat. 1223; Feb. 15, 1928, ch. 57, title IV, 45 Stat. 107; Jan. 25, 1929, ch. 102, title IV, 45 Stat. 1137; Apr. 18, 1930, ch. 184, title IV, § 1, 46 Stat. 216, expired with the appropriation acts of which it was a part.

SUBCHAPTER II.—REGULATION AND RESTRICTION OF IMMIGRATION IN GENERAL

§ 131. Control of immigration.

CODIFICATION

Section transferred to section 342a of Title 5, Executive Departments and Government Officers and Employees.

§§ 132 to 137–10. Repealed. June 27, 1952. ch. 477, title IV, § 403 (a) (1), (8), (11), (13), (16), (48), 66 Stat. 279, 280.

Section 132, act Feb. 5, 1917, ch. 29, § 2, 39 Stat. 875, related to head tax, and is now covered by subchapter II of chapter 12 of this title.

Section 133, act Mar. 4, 1909, ch. 299, § 1, 35 Stat. 982, related to covering of monies into Treasury, and is now covered by subchapter II of chapter 12 of this title.

Section 134, act Feb. 3, 1905, ch. 297, § 1, 33 Stat. 684, related to refunding of erroneous head tax under act Mar. 3, 1903, was formerly repealed by acts Feb. 20, 1907, ch. 1134, § 43, 34 Stat. 911; Feb. 5, 1917, ch. 29, § 38, 39 Stat. 897, and is not now covered.

Section 135, R. S. § 2164, related to state tax or charge on immigrants, and is now covered by subchapter II of chapter 12 of this title.

Section 136, acts Feb. 5, 1917, ch. 29, § 3, 39 Stat. 875; June 5, 1920, ch. 243, 41 Stat. 981; Mar. 4, 1929, ch. 690, § 1 (d), 45 Stat. 1551; Sept. 27, 1944, ch. 418, § 2, 58 Stat. 746, related to exclusion of aliens and is now covered by subchapter II of chapter 12 of this title.

Section 137, acts Oct. 16, 1918, ch. 186, § 1, 40 Stat. 1012; June 5, 1920, ch. 251, 41 Stat. 1008; June 28, 1940, ch. 439, title II, § 23(a), 54 Stat. 673; May 25, 1948, ch. 338, 62 Stat. 268; Sept. 23, 1950, ch. 1024, title I, § 22, 64 Stat. 1006, related to the exclusion of subversive aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 137–1, acts Oct. 16, 1918, ch. 186, § 2, 40 Stat. 1012; June 28, 1940, ch. 439, title II, § 23(b), 54 Stat. 673; Sept. 23, 1950, ch. 1024, title I, § 22, 64 Stat. 1006, related to exceptions as to certain aliens seeking temporary entrance, and is now covered by subchapter II of chapter 12 of this title.

Section 137–2, acts Oct. 16, 1918, ch. 186, § 3, 40 Stat. 1012; Sept. 23, 1950, ch. 1024, title I, § 22, 64 Stat. 1006, related to prohibition against issuance of visas to subversive aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 137–3, act Oct. 16, 1918, ch. 186, § 4, as added act Sept. 23, 1950, ch. 1024, title I, § 22, 64 Stat. 1006, related to deportation of subversive aliens, and is now covered by subchapter II of chapter 12 of this title.

Sections 137–4 to 137–8, acts Oct. 16, 1918, ch. 186, §§ 5—9, as added act Sept. 23, 1950, ch. 1024, title I, § 22, 64 Stat. 1006, related to temporary exclusion of suspects, subversive aliens and penalties, and is now covered by subchapter II of chapter 12 of this title.

Section 137–9, act Mar. 28, 1951, ch. 23, § 1, 65 Stat. 28, related to clarification of immigration status of certain aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 137–10, act Mar. 28, 1951, ch. 23, § 2, 65 Stat. 28, related to recordation of entry for permanent residence, and is now covered by subchapter II of chapter 12 of this title.

§ 137a. Repealed. May 24, 1934, ch. 344, § 5, 48 Stat. 798.

Section, act Sept. 22, 1922, ch. 411, § 8, as added by act July 3, 1930, ch. 826, 46 Stat. 849, provided as follows:

"§ 137a. Married woman whose husband is native-born citizen and veteran of World War. Any woman eligible by race to citizenship who has married a citizen of the United States before July 3, 1930, whose husband shall have been a native-born citizen and a member of the military or naval forces of the United States during the World War, and separated therefrom under honorable conditions; if otherwise admissible, shall not be excluded from admission into the United States under section 136 of this title, unless she be excluded under the provisions of that section relating to—

"(a) Persons afflicted with a loathsome or dangerous contagious disease, except tuberculosis in any form;

"(b) Polygamy;

"(c) Prostitutes, procurers, or other like immoral persons;

"(d) Persons convicted of crime: *Provided,* That no such wife shall be excluded because of offenses committed during legal infancy, while a minor under the age of twenty-one years, and for which the sentences imposed were less than three months, and which were committed more than five years previous to July 3, 1930;

"(e) Persons previously deported;

"(f) Contract laborers.

"After admission to the United States she shall be subject to all other provisions of former sections 9 and 10 and 367—370 of this title."

SAVINGS CLAUSE

Section 5 of act May 24, 1934, provided that the repeal of this section should "not affect any right or privilege or terminate any citizenship acquired under" it before such repeal.

§§ 137b—173. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (2), (3), (5), (13), (18), (19), (23), (31), (32), (47), 66 Stat. 279, 280.

Sections 137b—137d, act Mar. 17, 1932, ch. 85, §§ 1—3, 47 Stat. 67, related to alien musicians, and are now covered by subchapter II of chapter 12 of this title.

Section 138, act Feb. 5, 1917, ch. 29, § 4, 39 Stat. 878, related to importation of aliens for immoral purposes, and is now covered by subchapter II of chapter 12 of this title.

Section 139, act Feb. 5, 1917, ch. 29, § 5, 39 Stat. 879, related to contract laborers, and is now covered by subchapter II of chapter 12 of this title.

Section 140, acts Oct. 19, 1888, ch. 1210, § 1, 25 Stat. 566; April 28, 1904, No. 34, 33 Stat. 591; March 4, 1913,

ch. 141, § 3, 37 Stat. 737, related to rewards to informer and is now covered by subchapter II of chapter 12 of this title.

Section 141, act Feb. 26, 1885, ch. 164, § 2, 23 Stat. 332, related to validity of contracts for labor of aliens made before importation, and is now covered by subchapter II of chapter 12 of this title.

Section 142, act Feb. 5, 1917, ch. 29, § 6, 39 Stat. 879, related to advertisement of employment, and is now covered by subchapter II of chapter 12 of this title.

Section 143, act Feb. 5, 1917, ch. 29, § 7, 39 Stat. 879, related to solicitation of immigration by transportation companies, and is now covered by subchapter II of chapter 12 of this title.

Section 144, acts Feb. 5, 1917, ch. 29, § 8, 39 Stat. 880; Mar. 20, 1952, ch. 108, § 1, 66 Stat. 26, related to bringing in or harboring certain aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 145, acts Feb. 5, 1917, ch. 29, § 9, 39 Stat. 880; May 26, 1924, ch. 190, § 26, 43 Stat. 166, related to bringing in aliens subject to disability or afflicted with disease, and is now covered by subchapter II of chapter 12 of this title.

Section 146, acts Feb. 5, 1917, ch. 29, § 10, 39 Stat. 881; May 26, 1924, ch. 190, § 27, 43 Stat. 167, related to prevention of unauthorized landing of aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 147, act Feb. 5, 1917, ch. 27, § 11, 39 Stat. 881, related to detention of aliens for observation and examination, and is now covered by subchapter II of chapter 12 of this title.

Section 148, acts Feb. 5, 1917, ch. 29, § 12, 39 Stat. 882; May 17, 1932, ch. 190, 47 Stat. 158; July 30, 1947, ch. 384, 61 Stat. 630, related to lists of passengers arriving or departing, and is now covered by subchapter II of chapter 12 of this title.

Section 149, act Feb. 5, 1917, ch. 29, § 13, 39 Stat. 884, related to grouping of alien passengers in lists, and is now covered by subchapter II of chapter 12 of this title.

Section 150, act Feb. 5, 1917, ch. 29, § 14, 39 Stat. 884, related to refusal or failure to furnish alien passenger list, and is now covered by subchapter II of chapter 12 of this title.

Section 151, acts Feb. 5, 1917, ch. 29, § 15, 39 Stat. 885; Dec. 19, 1944, ch. 608, § 1, 58 Stat. 816, related to inspection of alien passengers on arrival, and is now covered by subchapter II of chapter 12 of this title.

Section 152, acts Feb. 5, 1917, ch. 29, § 16, 39 Stat. 885; July 1, 1944, ch. 373, title VII, § 713, 58 Stat. 714, renumbered act Aug. 13, 1946, ch. 958, § 5, 60 Stat. 1049, renumbered act Feb. 28, 1948, ch. 83, § 9 (b), 62 Stat. 47, related to physical and mental examination of alien passengers, and is now covered by subchapter II of chapter 12 of this title.

Section 153, act Feb. 5, 1917, ch. 29, § 17, 39 Stat. 887, related to boards of special inquiry, and is now covered by subchapter II of chapter 12 of this title.

Section 154, acts Feb. 5, 1917, ch. 29 § 18, 39 Stat. 887; Mar. 4, 1929, ch. 690, § 1 (e), 45 Stat. 1551; Dec. 19, 1944, ch. 608, § 2, 58 Stat. 816, related to immediate deportation of aliens brought in in violation of law, and is now covered by subchapter II of chapter 12 of this title.

Section 155, acts Feb. 5, 1917, ch. 29, § 19, 39 Stat. 889; June 28, 1940, ch. 439, title II, § 20, 54 Stat. 671; Dec. 8, 1942, ch. 697, 56 Stat. 1044; June 1, 1948, ch. 783, 62 Stat. 1206, related to deportation of undesirable aliens generally, and is now covered by subchapter II of chapter 12 of this title.

Section 155a, act Sept. 27, 1950, ch. 1052, ch. III, § 101, 64 Stat. 1048, related to deportation or exclusion proceedings unaffected by the Administrative Procedure Act, and is now covered by suchapter II of chapter 12 of this title.

Section 156, acts Feb. 5, 1917, ch. 29, § 20, 39 Stat. 890; July 13, 1943, ch. 230, 57 Stat. 553; Sept. 23, 1950, ch. 1024, title I, § 23, 64 Stat. 1010; June 18, 1952, ch. 442, 66 Stat. 138, related to control over, and facilitation of deportation, and is now covered by subchapter II of chapter 12 of this title.

Section 156a, acts Feb. 18, 1931, ch. 224, 46 Stat. 1171; June 28, 1940, ch. 439, title II, § 21, 54 Stat. 673, related to deportation of aliens engaged in narcotic traffic, and is now covered by subchapter II of chapter 12 of this title.

Section 157, act May 10, 1920, ch. 174, §§ 1—3, 41 Stat. 593, 594, related to deportation of aliens convicted of war-time offenses, and is now covered by subchapter II of chapter 12 of this title.

Sections 158—163, act Feb. 5, 1917, ch. 29, §§ 21—23, 28, 39 Stat. 891—894, related to admission of aliens, detention, etc., and are now covered by subchapter II of chapter 12 of this title.

Section 164, act Feb. 5, 1917, ch. 29, § 25, 39 Stat. 893, related to the jurisdiction of district courts, and is now covered by subchapter II of chapter 12 of this title.

Section 165, act Feb. 5, 1917, ch. 29, § 31, 39 Stat. 895, related to signing alien on ship's articles with intent to permit landing in violation of law, and is now covered by subchapter II of chapter 12 of this title.

Section 166, acts Feb. 5, 1917, ch. 29, § 34, 39 Stat. 896; May 26, 1924, ch. 190, § 19, 43 Stat. 164, related to landing of excluded seamen, and is now covered by subchapter II of chapter 12 of this title.

Section 167, acts May 26, 1924, ch. 190, § 20 (a—c), 43 Stat. 164; Dec. 19, 1944, ch. 608, § 4, 58 Stat. 817, related to control of alien seamen, and is now covered by subchapter II of chapter 12 of this title.

Section 168, act Feb. 5, 1917, ch. 29, § 33, 39 Stat. 896, related to paying off or discharging alien seamen, and is now covered by subchapter II of chapter 12 of this title.

Section 169, act Feb. 5, 1917, ch. 29, § 35, 39 Stat. 896, related to employment on passenger vessels of aliens suffering with mental disabilities, and is now covered by subchapter II of chapter 12 of this title.

Section 170, act Dec. 26, 1920, ch. 4, 41 Stat. 1082, related to treatment in hospitals of alien seamen, and is now covered by subchapter II of chapter 12 of this title.

Section 171, act Feb. 5, 1917, ch. 29, § 36, 39 Stat. 896, related to lists of aliens employed on vessels arriving from foreign ports, and is now covered by subchapter II of chapter 12 of this title.

Section 172, acts Mar. 3, 1893, ch. 206, § 8, 27 Stat. 570; Feb. 14, 1903, ch. 552, § 7, 32 Stat. 328; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737, related to posting of laws by agents of steamship companies and is now covered by subchapter II of chapter 12 of this title.

Section 173, acts Feb. 5, 1917, ch. 29, §§ 1, 37, 39 Stat. 874, 897; June 2, 1924, ch. 233, 43 Stat. 253, related to definitions of alien seamen, etc. and is now covered by subchapter II of chapter 12 of this title.

§ 174. Finality of decisions of immigration officers.

CODIFICATION

Section transferred to section 342k of Title 5, Executive Departments and Government Officers and Employees.

§§ 175—181. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (12), (13), (23), (30), (33), 66 Stat. 279.

Section 175, act Feb. 5, 1917, ch. 29, § 1, 39 Stat. 874, related to application of laws to Philippine Islands, and is now covered by subchapter II of chapter 12 of this title.

Section 176, act March 15, 1934, ch. 70, § 1, 48 Stat. 435, related to disposition of monies received or paid for detention of aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 177, act Feb. 5, 1917, ch. 29, § 29, 39 Stat. 894, related to international conference for regulation of immigration of aliens, and is not now covered.

Section 178, act Feb. 5, 1917, ch. 29, § 38, 39 Stat. 897, related to laws unaffected, and is not now covered.

Section 179, act May 26, 1924, ch. 190, § 21 (b), 43 Stat. 165, related to blank forms of manifest and crew lists, and is now covered by subchapter II of chapter 12 of this title.

Section 180, acts Mar. 4, 1929, ch. 690, § 1 (a—c), 45 Stat. 1551; June 24, 1929, ch. 40, 46 Stat. 41, related to reentry or attempted reentry of deported aliens, and is now covered by subchapter II of chapter 12 of this title.

Sections 180a—180d, act Mar. 4, 1929, ch. 690, §§ 2—5, 45 Stat. 1551, 1552, related to reentry or attempted reentry of deported aliens, and is now covered by subchapter II of chapter 12 of this title.

Section 181, act May 25, 1932, ch. 203, § 7, 47 Stat. 166, related to reentry of deported aliens, and is now covered by subchapter II of chapter 12 of this title.

SUBCHAPTER III.—QUOTA AND NONQUOTA IMMIGRANTS

§§ 201—204. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (23), (24), 66 Stat. 279.

Section 201, act May 26, 1924, ch. 190, § 1, 43 Stat. 153, related to short title and is not now covered.

Section 202, acts May 26, 1924, ch. 190, § 2, 43 Stat. 153; Feb. 25, 1925, ch. 316, 43 Stat. 976, related to immigration visas, and is now covered by subchapter II of chapter 12 of this title.

Section 203, acts May 26, 1924, ch. 190, § 3, 43 Stat. 154; July 6, 1932, ch. 434, 47 Stat. 607; July 1, 1940, ch. 502, § 1, 54 Stat. 711, Dec. 29, 1945, ch. 652, title I, § 7 (c), 59 Stat. 672, related to the definition of immigrant, and is now covered by subchapter II of chapter 12 of this title.

Section 204, acts May 26, 1924, ch. 190, § 4, 43 Stat. 155; July 3, 1926, ch. 738, § 1, 44 Stat. 812; May 29, 1928, ch. 914, §§ 1, 2, 45 Stat. 1009; July 3, 1930, ch. 835, § 3, 46 Stat. 854; July 11, 1932, ch. 471, § 1, 47 Stat. 656; May 19, 1948, ch. 311, § 1, 62 Stat. 241, related to definition of nonquota immigrant, and is now covered by subchapter II of chapter 12 of this title.

§§ 204a, 204b. Native of Virgin Islands residing in foreign countries.

CODIFICATION

Sections related to natives of the Virgin Islands residing in foreign countries on June 22, 1932, and were based upon act June 28, 1932, ch. 283, §§ 1, 2, 47 Stat. 336. Former section 204b of this title provided that section 204a should not apply after June 28, 1934.

§§ 204c—219. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (23), (36), (44), (45), 66 Stat. 279, 280.

Sections 204c, 204d, act June 28, 1932, ch. 283, §§ 3, 4, 47 Stat. 336, related to deportation as public charge and definitions, and are now covered by subchapter II of chapter 12 of this title.

Section 205, act May 26, 1924, ch. 190, § 5, 43 Stat. 155, related to definition of quota immigrant, and is now covered by subchapter II of chapter 12 of this title.

Section 206, acts May 26, 1924, ch. 190, § 6, 43 Stat. 155; May 29, 1928, ch. 914, § 3, 45 Stat. 1009; July 11, 1932, ch. 471, § 2, 47 Stat. 656; May 19, 1948, ch. 311, § 2, 62 Stat. 241, related to enumeration of preferences within quotas, and is now covered by subchapter II of chapter 12 of this title.

Sections 207, 208, act May 26, 1924, ch. 190, §§ 7, 8, 43 Stat. 156, 157, related to application for visas and nonquota immigration visas, and are now covered by subchapter II of chapter 12 of this title.

Section 209, acts May 26, 1924, ch. 190, § 9, 43 Stat. 157; May 14, 1937, ch. 182, § 1, 50 Stat. 164, related to visas of nonquota and preferred immigrants, and is now covered by subchapter II of chapter 12 of this title.

Section 210, acts May 26, 1924, ch. 190, § 10, 43 Stat. 158; June 3, 1948, ch. 403, 62 Stat. 335, related to reentry permits, and is now covered by subchapter II of chapter 12 of this title.

Section 211, acts May 26, 1924, ch. 190, § 11, 43 Stat. 159; Mar. 4, 1927, ch. 514, 44 Stat. 1455; Mar. 31, 1928, ch. 306, 45 Stat. 400, related to immigration quotas as determined by national origin, and is now covered by subchapter II of chapter 12 of this title.

Section 212, act May 26, 1924, ch. 190, § 12, 43 Stat. 160, related to determination of nationality, and is now covered by subchapter II of chapter 12 of this title.

Section 212a, acts Dec. 17, 1943, ch. 344, § 2, 57 Stat. 601; Aug. 9, 1946, ch. 945, § 2, 60 Stat. 975, related to reentry permits for Chinese persons, and is now covered by subchapter II of chapter 12 of this title.

Section 212b, act July 2, 1946, ch. 534, § 4, 60 Stat. 417, related to reentry permits for Indians and races indigenous to India, and is now covered by subchapter II of chapter 12 of this title.

Section 212c, act July 2, 1946, ch. 534, § 5, 60 Stat. 417, related to definitions and allocation of quota, and is now covered by subchapter II of chapter 12 of this title.

Section 213, acts May 26, 1924, ch. 190, § 13, 43 Stat. 161; June 13, 1930, ch. 476, 46 Stat. 581; May 14, 1937, ch. 182, § 2, 50 Stat. 165; Aug. 9, 1946, ch. 945, § 1, 60 Stat. 975, related to compliance with immigration requirements, and is now covered by subchapter II of chapter 12 of this title.

Section 213a, act May 14, 1937, ch. 182, § 3, 50 Stat. 165, related to deportation of alien securing visa through fraudulent marriage, and is now covered by subchapter II of chapter 12 of this title.

Section 214, act May 26, 1924, ch. 190, § 14, 43 Stat. 162, related to deportation and procedure thereunder, and is now covered by subchapter II of chapter 12 of this title.

Section 215, acts May 26, 1924, ch. 190, § 15, 43 Stat. 162; July 1, 1932, ch. 363, 47 Stat. 524; July 1, 1940, ch. 502, § 2, 54 Stat. 711; Dec. 29, 1945, ch. 652, title I, § 7 (d), 59 Stat. 672, related to admission of persons excepted from definition of immigrant and nonquota immigrants, and is now covered by subchapter II of chapter 12 of this title.

Section 216, acts May 26, 1924, ch. 190, § 16, 43 Stat. 163; Dec. 19, 1944, ch. 608, § 3, 58 Stat. 817, related to the unlawful bringing of aliens into United States by water, and is now covered by subchapter II of chapter 12 of this title.

Section 217, act May 26, 1924, ch. 190, § 17, 43 Stat. 163, related to contracts with transportation lines, and is now covered by subchapter II of chapter 12 of this title.

Section 218, act May 26, 1924, ch. 190, § 18, 43 Stat. 164, related to unused immigration visas, and is now covered by subchapter II of chapter 12 of this title.

Section 219, act May 26, 1924, ch. 190, § 21 (a), 43 Stat. 165, related to reentry permits, and is now covered by subchapter II of chapter 12 of this title.

§ 220. Repealed. June 25, 1948, ch. 645, § 21, 62 Stat. 862, eff. Sept. 1, 1948.

Section, act May 26, 1924, ch. 190, § 22, 43 Stat. 165, related to forging, counterfeiting, etc., of reentry permits, and is now covered by section 1546 of Title 18, Crimes and Criminal Procedure.

§§ 221—227. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (20), (22), (23), (29), 66 Stat. 279.

Section 221, act May 26, 1924, ch. 190, § 23, 43 Stat. 165, related to burden of proof upon entry of alien or in deportation proceedings, and is now covered by subchapter II of chapter 12 of this title.

Section 222, act May 26, 1924, ch. 190, § 24, 43 Stat. 166, related to rules and regulations, and is now covered by subchapter II of chapter 12 of this title.

Section 223, act May 26, 1924, ch. 190, § 25, 43 Stat. 166, related to quota law as additional to other immigration laws, and is now covered by subchapter II of chapter 12 of this title.

Section 224, acts May 26, 1924, ch. 190, § 28 (a—e, g—n), 43 Stat. 168; June 2, 1924, ch. 233, 43 Stat. 253; May 17, 1932, ch. 190, 47 Stat. 158; Oct. 29, 1945, ch. 437, 59 Stat. 551, related to definitions, and is now covered by subchapter II of chapter 12 of this title.

Section 225, act May 26, 1924, ch. 190, § 29, 43 Stat. 169, related to appropriations, and is now covered as a note under section 1101 of this title.

Section 226, act May 26, 1924, ch. 190, § 32, 43 Stat. 169, related to partial invalidity, and is not now covered.

Section 226a, act Apr. 2, 1928, ch. 308, 45 Stat. 401, related to American Indians born in Canada, and is now covered by subchapter II of chapter 12 of this title.

Section 227, act Dec. 27, 1922, ch. 15, 42 Stat. 1065, related to the admission of certain aliens in excess of quotas, and is now covered by subchapter II of chapter 12 of this title.

§ 228. Certain aliens admitted in excess of quotas permitted to remain.

CODIFICATION

Section, act June 7, 1924, ch. 379, 43 Stat. 669, omitted as expired as it related only to aliens who entered prior to July 1, 1924, under quota of 1921.

§§ 229—231, Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (17), (23), (27), 66 Stat. 279.

Section 229, acts May 19, 1921, ch. 8, 42 Stat. 5; May 26, 1924, ch. 190, § 30, 43 Stat. 169, related to the imposition and enforcement of penalties under May 19, 1921, and is not now covered.

Section 230, Joint Res. Oct. 16, 1918, ch. 190, 40 Stat. 1014, related to alien residents conscripted or volunteering for service during World War I, and is now covered by subchapter II of chapter 12 of this title.

Section 231, acts May 26, 1926, ch. 400, 44 Stat. 657; May 17, 1932, ch. 190, 47 Stat. 158, related to admission into Puerto Rico of certain resident Spanish subjects, and is now covered by subchapter II of chapter 12 of this title.

§§ 232—237. Omitted.

CODIFICATION

Sections, act Dec. 28, 1945, ch. 591, 59 Stat. 659, relating to admission of alien spouses and minor children of World War II veterans, omitted as expired three years after Dec. 28, 1945.

Section 237, act Dec. 28, 1945, ch. 591, § 6, added July 22, 1947, ch. 289, 61 Stat. 401.

§ 238. Prevention of transportation in foreign commerce of alien women and girls under international agreement; Commissioner designated as authority to receive and preserve information.

CODIFICATION

Section transferred to section 3421 of Title 5, Executive Departments and Government Officers and Employees.

§ 239. Admission of alien spouses and minor children of members of armed services.

CODIFICATION

Section, acts Aug. 19, 1950, ch. 759, 64 Stat. 464; Mar. 19, 1951, ch. 9, 65 Stat. 6, expired by its own terms on Mar. 19, 1952.

SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

§§ 241—246. Repealed. June 27, 1952, ch. 477, title IV, § 403 (a) (28), 66 Stat. 279.

Sections, act May 26, 1926, ch. 398, §§ 1—6, 44 Stat. 654, 655, related to alien veterans of World War I, and are now covered by subchapter II of chapter 12 of this title.

Chapter 7.—EXCLUSION OF CHINESE

§ 261. Control of exclusion of Chinese.

CODIFICATION

Section, acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, conferred upon the Attorney General the authority, power, and jurisdiction by virtue of any law relating to the exclusion from and residence within the United States, its Territories and the District of Columbia, of Chinese and persons of Chinese descent, and vested in the collectors of customs and collectors of internal revenue, under control of the Commissioner of Immigration and Naturalization, as the Attorney General might designate therefor, the authority, power, and jurisdiction in relation to such exclusion previously vested in such officers. It is now obsolete in view of the repeal, by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, of sections 262—297 and 299 of this title.

§§ 262—297. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Sections, acts May 6, 1882, ch. 126, §§ 1, 3, 6—13, 15, 16, 22 Stat. 59—61; July 5, 1884, ch. 220, 23 Stat. 115—118; Sept. 13, 1888, ch. 1015, §§ 5—11, 13, 14, 25 Stat. 477—479; Oct. 1, 1888, ch. 1064, §§ 1, 2, 25 Stat. 504; May 5, 1892, ch. 60, §§ 1—3, 5—8, 27 Stat. 25, 26; Nov. 3, 1893, ch. 14, §§ 1, 2, 28 Stat. 7, 8; July 7, 1898, No. 55, § 1 (part), 30 Stat. 751; Apr. 30, 1900, ch. 339, § 101, 31 Stat. 161; June 6, 1900, ch. 791, § 1 (part), 31 Stat. 611; Mar. 3, 1901, ch. 845, §§ 1—3, 31 Stat. 1093; Apr. 29, 1902, ch. 641, §§ 1, 2, 4, 32 Stat. 176, 177; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428; Aug. 24, 1912, ch. 355, § 1 (part), 37 Stat. 476, related to the exclusion of Chinese and persons of Chinese descent from the United States or its Territories, and to various matters appertaining thereto, including the requirement of certificates of permission and identity by those who might be entitled to entry, exemptions, duties of masters of vessels and Federal officers, arrest, hearing and removal of Chinese unlawfully within the United States or its Territories, habeas corpus, and forfeitures and penalties for violation of the exclusion laws.

Acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 823; Res. Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933, and 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, formerly cited in credits to many of these sections, were not specifically repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, however, each related to departmental changes of administrative functions and depended for their efficacy upon the acts repealed by said act Dec. 17, 1943.

Act, Aug. 29, 1916, ch. 416, § 12, 39 Stat. 548, formerly cited in credit to section 297, was not specifically repealed by act Dec. 17, 1943, cited above; however it merely affected the original of the words "Philippine Legislature."

§ 298. Bertillon system of identification.

CODIFICATION

Section, acts Mar. 17, 1894, Art. III, 28 Stat. 1211; Apr. 28, 1904, ch. 1762, § 1, 33 Stat. 478, provided for the Bertillon system of identification at the various ports of entry, to prevent unlawful entry of Chinese into the United States. It is obsolete in view of the repeal of sections 262—297 of this title by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600. For some years prior to such act, no moneys had been appropriated to prevent unlawful entry of Chinese, referred to in this section.

§ 299. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Section, act June 23, 1913, ch. 3, § 1, 38 Stat. 65, provided for delivery by the marshal, of all Chinese persons ordered deported under judicial writs, into the custody of any officer designated for that purpose, for conveyance to the frontier or seaboard for deportation.

Chapter 8.—THE COOLY TRADE

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary emigration of "coolies" excepted.
336. Same; inquiry and certificate by consular officer.
337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

§ 331. Cooly trade prohibited.

No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor,